



CHAPTER lxiv.

An Act to confirm a Provisional Order under the Inclosure Acts 1845 to 1899 relating to the Common Fields in the Parish of Elmstone Hardwicke in the County of Gloucester. A.D. 1914.
[8th July 1914.]

WHEREAS the Board of Agriculture and Fisheries did in pursuance of the Inclosure Acts 1845 to 1899 issue in the year nineteen hundred and thirteen the Provisional Order set forth in the schedule hereto for the inclosure of the common fields in the parish of Elmstone Hardwicke in the county of Gloucester and in a special report certified that it was expedient that the same should be confirmed by Parliament: 8 & 9 Vict. c. 118 &c.

And whereas a Committee of the House of Commons to which the said Provisional Order was referred recommended that the same should be confirmed without modification:

And whereas the said inclosure cannot be proceeded with without the previous authority of Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The said Provisional Order of Inclosure set forth in the schedule to this Act is hereby confirmed. Order confirmed.

2. This Act may be cited as the Inclosure (Elmstone Hardwicke) Provisional Order Confirmation Act 1914. Short title.

A.D. 1914.

S C H E D U L E.

*Provisional Order for the Inclosure of the Common Fields at
Elmstone Hardwicke in the County of Gloucester.*

WHEREAS persons interested in certain lands called or known as the common fields situate in the parish of Elmstone Hardwicke in the county of Gloucester (herein-after referred to as "the common fields") such lands being commons within the meaning of the Inclosure Acts 1845 to 1899 made application to the Board of Agriculture and Fisheries (herein-after referred to as "the Board") to issue a Provisional Order for the inclosure of the common fields and to certify that it is expedient that such Provisional Order should be confirmed by Parliament:

And whereas it was made to appear to the Board that the persons making the said application represented at least one-third in value of such interests in the common fields as are proposed to be affected by the Provisional Order:

And whereas the Board having taken the said application into consideration were satisfied that a *prima facie* case had been made out and that regard being had to the benefit of the neighbourhood as well as to private interests it was expedient to proceed further in the matter and accordingly ordered a local inquiry to be held by an officer of the Board:

And whereas the said officer having caused public notice to be given as required by the said Acts held pursuant to such notice public meetings in accordance with the requirements of the said Acts to hear all persons desirous of being heard on the subject-matter of the said application and any information or evidence which might be offered in relation thereto and inquired into the correctness of the statements in the said application and otherwise into the expediency of making the Provisional Order applied for and into the nature of the provisions to be inserted in such Provisional Order:

And whereas the said officer inspected the common fields as required by the said Acts:

And whereas the said officer duly reported in writing to the Board the result of the local inquiry and of the public meetings held by him together with all the information and other matters required by the said Acts:

And whereas the provisions of the said Acts have been in all respects complied with:

And whereas the Board have prepared and sealed a map showing the reputed boundaries of the common fields on which map the common fields are coloured green:

Now therefore the Board being satisfied that regard being had to the benefit of the neighbourhood as well as to private interests it is expedient to proceed further in the matter do by virtue of the powers in this behalf given to them by the Inclosure Acts 1845 to 1899 and the Board of Agriculture and Fisheries Acts 1889 to 1909 make this their Provisional Order as follows (that is to say):—

A.D. 1914.

PART I.

BENEFIT OF THE NEIGHBOURHOOD.

1. A portion or portions of the common fields being not less than ten acres in all in such situation as the valuer acting in the matter of the Award under Part II. of this Provisional Order shall with the approval of the Board select shall be set out and allotted to the chairman of the parish meeting and the overseers of the said parish in trust as a place or places for exercise and recreation for the inhabitants of the said parish and neighbourhood and provision shall be made in the said Award for enabling occupiers of cottages in the said parish to turn out animals on such allotment or allotments.

2. Portions of the common fields being not less than ten acres in all in such situation as the said valuer shall with such approval as aforesaid select shall be set out and allotted to the said chairman and overseers in trust for field-gardens for the labouring poor being inhabitants of the said parish.

3. Such carriage-roads bridle-roads and footpaths shall be set out to the satisfaction of the Board as may be convenient for public use and in particular a public carriage-road and footpath shall be set out and made across the common fields between the points marked A. and B on the said map.

PART II.

AWARD.

For the purpose of giving complete effect to this Provisional Order there shall be inserted in the Award to be made in pursuance of the Inclosure Acts 1845 to 1899 such provisions not inconsistent with those Acts as the Board shall think desirable and proper.

In witness whereof the Board of Agriculture and Fisheries have hereunto set their official seal this ninth day of April nineteen hundred and thirteen.

(L.S.)

R. H. REW

Assistant Secretary.

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